

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Case No.: CGC-25-631802

**JOINT STIPULATION TOLLING
DEFENDANT CSAA INSURANCE
EXCHANGE'S RESPONSIVE
PLEADING DEADLINE**

Complaint Filed: December 23, 2025

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1 Plaintiff FRANCISCUS DYLAN ROSARIO (“Plaintiff”) and Defendant CSAA
2 INSURANCE EXCHANGE (“Defendant”) (collectively, the “Parties”), with Defendant by and
3 through its counsel of record, and Plaintiff in pro per, hereby stipulate and agree as follows:

4 **RECITALS**

5 **WHEREAS**, Plaintiff has recently filed an Amended Complaint, thereby superseding the
6 original Complaint.

7 **WHEREAS**, as of the date of the filing of the Amended Complaint, Defendant’s responsive
8 pleading deadline to the original Complaint had not yet come to pass.

9 **WHEREAS**, the Parties agree that tolling Defendant’s responsive pleading deadline in this
10 action pending Plaintiff’s service of his Amended Complaint will conserve litigation resources,
11 promote settlement efforts, and serve judicial economy.

12 **WHEREAS**, the Parties also agree that the Defendant’s responsive pleading deadline will
13 be calendared based on the date of Plaintiff’s electronic service of the Amended Complaint upon
14 counsel for Defendant.

15 **WHEREAS**, Plaintiff has agreed that he will file a Consent to Electronic Service and Notice
16 of Electronic Service Address (hereafter “Consent to Electronic Service”) with the Court, and serve
17 upon all parties in the Action, so as to allow mutual Electronic Service of all documents moving
18 forward in this case.

19 **STIPULATION**

20 **NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED**

21 1. The current deadline for Defendant CSAA INSURANCE EXCHANGE’s
22 (“Defendant”) responsive pleading to the pleadings in this case will be tolled, pending Plaintiff’s
23 proper service of the Amended Complaint.

24 2. Pending the service of the Amended Complaint, Plaintiff will not seek the default of
25 Defendant.

26 3. Plaintiff will soon file a Consent to Electronic Service.

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4. Plaintiff will—after filing and serving the Consent to Electronic Service—serve a copy of the Amended Complaint, upon Counsel for Defendant, with a Notice of Acknowledgement of Receipt and proper proof of electronic service.

5. Defendant will then file its responsive pleadings to the Amended Complaint, as required under the Code of Civil Procedure.

IT IS SO STIPULATED.

Plaintiff FRANCISCUS DYLAN ROSARIO

Dated: _____

By FRANCISCUS DYLAN ROSARIO
Plaintiff in Pro Per

PORTER SCOTT APC

Dated: March 6, 2026

By Tyler J. O'Connell
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE